

25NNCV09141 25NNCV09141

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 25NNCV09141 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 11

Date: September 11, 2026

Case No: 25NNCV09141 Trial Date: February 14, 2028

Case Name: Reiten v. FCA US LLC, et al.

MOTION TO ENFORCE CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR SANCTIONS

[CCP § 871.26 subd. (b)]

Moving Party: Plaintiff, Alexander Reiten

Responding Party: Defendant, FCA US LLC

RELIEF REQUESTED:

An order for monetary sanctions in the amount of \$2,500.00 for Defendant's failure to comply with CCP § 871.26 subdivision (b) and an order compelling Defendant to produce its warranty policy and procedure manuals.

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty Obligations

2) Breach of Implied Warranty Obligations

3) Failure to Repair in a Good and Workmanlike Manner

4) Failure to Repair Within Thirty Days

SUMMARY OF FACTS:

This is a lemon-law action. Alexander Reiten ("Plaintiff") alleges that on July 11, 2025, Plaintiff leased a 2025 Jeep Wagoneer for which FCA US LLC ("Defendant") issued express warranties. Plaintiff alleges that defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (CCP § 871.26 subd. (b).) The required initial documents include a defendant's warranty policies and procedure manuals. (CCP § 871.26 subd. (h)(12).)

"Unless the party failing to comply with [section 871.26] shows good cause, [...] a court shall impose sanctions as follows: [...] A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (CCP, § 871.26, subd. (j)(2).)

Defendant served its Answer to the Complaint on February 10, 2026. Accordingly, Defendant's initial disclosures and documents were due by April 10, 2026. (CCP § 871.26 subd. (b).) Plaintiff asserts that on April 9, 2026, Defendant produced some documents and included a protective order for Plaintiff to sign concerning the remaining documents, including Defendant's policy and procedure manuals. (Sanchez Decl., ¶¶ 4-5, Exs. A-B.) Plaintiff asserts that, despite executing the protective order, Defendant had failed to produce the additional documents as of the filing of the instant motion. (Sanchez Decl., ¶ 7.)

In the opposition, Defendant asserts that the motion is unnecessary as it produced the remaining documents on May 13, 2026 pursuant to the protective order, and Plaintiff has not demonstrated any irreparable harm or prejudice caused by the delay. (Opp., pp. 2:13-4:22.)

The stipulation and protective order was signed by Plaintiff on April 22, 2026, and signed by Defendant and filed with the Court on May 13, 2026. (5/13/2026 Stipulation and Protective Order.) Defendant asserts that the delay in producing the remaining documents was the result of Defendant's counsel's mistake and inadvertence due to counsel's high volume of cases and discovery filings. (Opp., p. 2:2.)

While the documents have since been provided, CCP section 871.26 requires sanctions when a party fails to provide initial disclosures within 60 days of the filing of the answer, irrespective of any subsequent production. (CCP § 871.26 subd. (b).) Thus, while the motion is MOOT to the extent Plaintiff requests an order compelling Defendant to produce its warranty policy and procedure manuals, the request for sanctions is GRANTED.

RULING:

Plaintiff Alexander Reiten's Motion to Enforce Code of Civil Procedure Section 871.26 is GRANTED. Defendant's counsel is ordered to remit sanctions in the amount \$2,500.00 to Plaintiff within 15 business days of this order.

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by 3:00 PM today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.